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No, California doesn't have a 'Skittles ban.' But Peeps might be in for a shake-up

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California is not banning Skittles, despite some false viral social media claims that the colorful candy could soon disappear off store shelves. However, the state has become the first to pass legislation prohibiting certain chemical additives in popular candies and beverages.

Gov. Gavin Newsom signed Assembly Bill 418 into law last week, barring the manufacture and sale of food items containing brominated vegetable oil, potassium bromate, propylparaben, and red dye 3.

These chemicals, already prohibited in the European Union and other parts of the world, have been linked to substantial health risks, including cancer, nervous system damage, hyperactivity and other neurological conditions, according to scientific research cited by the bill's author, Assemblymember Jesse Gabriel.

Under the new law, food manufacturers have until Jan. 1, 2027, to reformulate their products and eliminate these additives. Newsom, in his signing statement, emphasized that many affected products have already been adjusted for sale in other countries.

"This is demonstrable proof that the food industry is capable of maintaining product lines while complying with different public health laws, country to country," he wrote.

Some products that may potentially have to change their recipes for consumption in California include Peeps, Pez, and Brach's Candy Corn.

The bill was misleadingly labeled as a "Skittles ban" because an earlier version included titanium dioxide, a color additive used in the candy.

The hip-hop news site Daily Loud falsely claimed Skittles, Hot Tamales and Dubble Bubble gum would be prohibited in California by 2027 in a social media post on X (formerly Twitter) that was viewed more than 20 million times. Television star Mario Lopez also piled on in a separate post, stating, "Crime is through the roof, worst drug epidemic ever & homelessness at an all time high in CA... Let's focus on Skittles."

However, titanium dioxide was removed from the legislation at the last minute. The Food and Drug Administration has deemed the ingredient safe for consumption in small quantities.

"Our belief is that the science and the international regulatory reviews of titanium dioxide support its continued safe use in these applications and didn't warrant being included in the bill," said Tim Shestek, senior director of state affairs at the American Chemistry Council, which lobbied lawmakers to have the ingredient taken out of the legislation.

Red dye 3, a substance banned by the FDA for cosmetic use more than 30 years ago due to concerns about its carcinogenic properties, is still utilized in popular candies, cookies and colored drinks.

Propylparaben is a preservative found in baked goods and trail mixes, and brominated vegetable oil is used in citrus drinks to prevent flavoring oils from separating. The latter contains the element bromine, which is also an ingredient in flame retardants.

Potassium bromate, used to strengthen dough, can be found in various breads, cookies and tortillas in the U.S., although it is banned in the EU, United Kingdom, Canada and Brazil.

The California bill was co-sponsored by Consumer Reports. Brian Ronholm, director of food policy at the nonprofit, said he hoped that because of the size of the state's population, the law would prompt manufacturers to make changes nationwide.

"The FDA has been slow to address these dangers, so it is critical for states like California to protect consumers from these toxic food chemicals," Ronholm said.

Many brands have already ditched these chemicals due to European regulations. They include PepsiCo, which previously phased out the use of brominated vegetable oil in beverages such as Mountain Dew and Gatorade.

"There's no reason that the foods that you can find on the supermarket shelves in Europe should be safer than the ones that we find here in California," said Melanie Benesh, vice president of governmental affairs at the Environmental Working Group, a co-sponsor of the bill.

While proponents hail the legislation as a crucial step in protecting consumers from harmful substances, critics, including the National Confectioners Association, argue against the necessity of such a ban.

James Coughlin, a food safety consultant at UC Davis, said the legislation is "unnecessary and unscientific," and the chemicals included are safe for human consumption in legally permissible quantities.

CalMatters contributed to this report.

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